

25STCV13621 25STCV13621

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Case Number: 25STCV13621 Hearing Date: July 10, 2026 Dept: 735

Sagrero v. General Motors, LLC

Defendant GM's Demurrer to First Amended

Complaint and Motion to Strike

BACKGROUND

This is a lemon law action arising out of the purchase of a 2020 Chevrolet Equinox, manufactured and distributed by Defendant. Plaintiffs bring this action for violations of the Song-Beverly Act and fraudulent concealment.

DISCUSSION

Demurrer

Fraudulent Concealment

Defendants demur to the fifth cause of action for fraudulent concealment on the ground that it fails to allege sufficient facts. The Court of Appeal in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 addressed issues almost identical to those in this demurrer. The Court found that the following allegations were sufficient to state a cause of action for fraud: "plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing

known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car." (Id. at 844.) Plaintiffs have alleged analogous facts here.

Defendant asserts that the Supreme Court ruling in *Rattagan v. Uber Technologies* (2024) 17 Cal.5th 1 requires a different result. Specifically, Defendant contends that *Rattagan* requires the Plaintiff allege a direct dealing or relationship between the parties in order to establish a duty to disclose for a fraudulent concealment claim. Defendant asserts that Plaintiffs have not done so here. Plaintiffs allege that Plaintiffs entered into a warranty agreement with Defendant. This allegation is sufficient to create a direct transactional relationship. The demurrer to the cause of action for fraud is overruled.

Violation of the CLRA

Defendant asserts the claim for violation of the CLRA fails because Plaintiffs have not sufficiently alleged fraud. As stated, Plaintiffs have sufficiently pleaded the cause of action for fraud. The demurrer to the cause of action for violation of the CLRA is overruled.

Motion to Strike

Defendant moves to strike Plaintiffs' claims for punitive damages. As Plaintiffs have sufficiently alleged a cause of action for fraud, Plaintiffs have alleged entitlement to punitive damages. The motion to strike is denied.

CONCLUSION

The Court overrules Defendant's demurrer.

The Court denies Defendant's motion to strike.

Defendant shall file and serve its answer within 10 days.

Defendant shall give notice.